



Notification Waiver Determination

CVC Capital Partners – DistroKid

Acquisition	Dream HoldCo LLC, a newly incorporated company controlled by funds or vehicles advised or managed by CVC Capital Partners plc and its subsidiaries (the CVC Funds), applied for a notification waiver in respect of its proposed acquisition of 100% of the shares in DK Holdco, LLC (trading as DistroKid), as described in the transaction documents provided as part of the application (the Acquisition).
Determination	The Australian Competition and Consumer Commission has determined under section 51ABV(1)(a) of the <i>Competition and Consumer Act 2010</i> (Cth) that the Acquisition is not required to be notified.
Date of determination	19 August 2026

Parties to the Acquisition	CVC Capital Partners plc is a public limited company whose shares are listed on the Euronext Amsterdam Stock Exchange. The CVC Network is a global alternative investment manager focused on private equity, credit, infrastructure and secondaries, and includes CVC Capital Partners plc, each of its subsidiaries and the CVC Funds. The target, DistroKid, is headquartered in the United States and is an independent digital music distribution platform, enabling musicians and record labels to upload and distribute their music to digital streaming platforms such as Spotify, Apple Music and YouTube. DistroKid also provides ancillary services including royalty collection and distribution and music promotion tools.
Explanation for determination	In making this notification waiver determination, the Australian Competition and Consumer Commission (the ACCC) has considered the information provided with the notification waiver application and had regard to the factors in section 51ABV(2)(b) of the <i>Competition and Consumer Act 2010</i> (Cth) (the Act). Based on the information provided in the application, the ACCC considers that the Acquisition is unlikely to give rise to any material lessening of competition. In particular: a. there is no horizontal overlap or vertical relationship between the CVC Network (including its portfolio companies) and DistroKid in the wholesale digital distribution of recorded music in Australia b. there are several alternative suppliers of digital music distribution services in Australia.

	In these circumstances, the ACCC does not consider it necessary to reach a concluded view on the likelihood of the notification thresholds being met. Given that material competition concerns are unlikely to arise, the ACCC has determined that the Acquisition is not required to be notified. The ACCC considers that the determination is consistent with the object of the Act and the interests of consumers in promoting competition. For more information about the ACCC's approach to considering notification waiver applications and to assessing competition effects more generally, see the ACCC's guidance on notification waivers and merger assessment guidelines.
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Determination made by Commissioner Williams pursuant to a delegation under section 25(1) of the Act